

1 ENGROSSED SENATE
2 BILL NO. 2084

By: Paxton and Jett of the
Senate

3 and

4 Hilbert of the House
5
6

7 An Act relating to The Governmental Tort Claims Act;
8 defining terms; limiting settlement awards for
9 wrongful termination claims; providing for inclusion
10 of certain damages; providing for exclusion of
certain contributions or wages; providing exceptions
to applicability; providing for codification; and
providing an effective date.

11
12
13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 163.1 of Title 51, unless there
16 is created a duplication in numbering, reads as follows:

17 A. As used in this section:

18 1. "Faculty member" means any regular faculty member as defined
19 by the applicable policy of the subject institution;

20 2. "Institution" means any institution within The Oklahoma
21 State System of Higher Education, the governing body of any
22 institution within The Oklahoma State System of Higher Education, an
23 employee of an institution within The Oklahoma State System of
24 Higher Education, and a member of the governing body of any

1 institution within The Oklahoma State System of Higher Education;
2 and

3 3. "Wrongful termination claim" means any claim, cause of
4 action, complaint, grievance, lawsuit, or demand for monetary or
5 equitable relief, arising under state law alleging wrongful
6 termination of an employee.

7 B. Notwithstanding any provision of law to the contrary, the
8 total amount paid by an institution to a faculty member to resolve a
9 wrongful termination claim under state law, whether by voluntary
10 settlement between the institution and the faculty member,
11 arbitration award, or court judgment, shall not exceed an amount
12 equal to two (2) years of the faculty member's base salary,
13 compensation, or contractual benefit, as of the date of termination.
14 Such limitation shall include, but not be limited to, back pay,
15 compensatory damages, liquidated damages, and any other monetary
16 relief, but shall not include retirement contributions already
17 earned by the faculty member or accrued unpaid wages or leave
18 accrued by the faculty member.

19 C. The provisions of this section shall not apply to any
20 written contract, whether dated prior to, on, or after the effective
21 date of this act, related to the institution and executed between
22 the institution and an employee of the institution who is not a
23 faculty member as defined in subsection A of this section.

24 SECTION 2. This act shall become effective November 1, 2026.

1 Passed the Senate the 26th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives